

Member ID: _____

Time: _____

Rank: _____



LEGAL OFFICE PROCEDURES (245)

STATE 2022

OBJECTIVE:

Multiple Choice (30 @ 3 points each) _____ (90 points)

PRODUCTION:

Job 1: Judgement _____ (100 points)

TOTAL POINTS _____ (190 points)

Test Time: 60 minutes

GENERAL GUIDELINES:

Failure to adhere to any of the following rules will result in disqualification:

1. Contestant must hand in this test booklet and all printouts if any. Failure to do so will result in disqualification.
2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests (handwritten, photocopied, or keyed) are allowed in the testing area.
3. Electronic devices will be monitored according to ACT standards.

EXAM GUIDELINES:

1. Ensure this test booklet contains 30 multiple choice/TF questions and Job 1.
2. Key all jobs according to the instructions given.
3. Correct any and all formatting, spelling or grammar errors. Use the formatting guide in the *Style & Reference Manual*.
4. Your name or initials should *not* appear on any work you submit. Use your Member ID in any occasion you would normally key your reference initials.
5. In the lower **right**-hand corner of ALL work submitted (unless otherwise specified), key your Member ID and job number.
6. If you complete the event before the end of the time allotted, notify the proctor. Time may be considered a factor in determining a winner when there is a tie score.
7. Place your scoring sheet on top of your job.

PRODUCTION STANDARDS	
0 Errors	100 Points
1 Error	90 Points
2 Errors	70 Points
3 Errors	50 Points
4+ Errors	0 Points

OBJECTIVE

Directions: Select the letter of the answer that *best* answers the question or completes/describes the statement.

1. A written statement submitted to the court for the purpose of persuading it of the correctness of one's position is called a(n) _____.
 - A. Memorandum of law
 - B. Interrogatory
 - C. Bill of particulars
 - D. Verification
2. The jurisdiction of a federal court that occurs because of a controversy between people of different states is called _____.
 - A. Jurisprudence
 - B. Personal jurisdiction
 - C. Diversity jurisdiction
 - D. In personam jurisdiction
3. A(n) _____ is declared when a trial is terminated by a judge prior to its conclusion because of a hung jury or judicial error.
 - A. mistrial
 - B. arbitration
 - C. alternative dispute resolution
 - D. confession of judgment
4. During _____, the attorney will ask leading questions that are meant to suggest a particular answer.
 - A. direct examination
 - B. cross-examination
 - C. rebuttal
 - D. jury instructions
5. Before a suspect can be questioned, he or she must be informed of the right to remain silent. This is part of the _____.
 - A. Exclusionary rule
 - B. Custody rule
 - C. Amendment rule
 - D. Miranda rule

6. The degree of proof needed to convict a person of a crime is _____.
 - A. preponderance of the evidence
 - B. clear and convincing proof
 - C. proof beyond a reasonable doubt
 - D. a scintilla of evidence
7. The charge made in writing by a grand jury based on evidence that has been presented, accusing a person of committing a crime, is the _____.
 - A. preliminary hearing
 - B. arrest
 - C. subpoena
 - D. indictment
8. Which of the following crimes is not classified as a misdemeanor?
 - A. Disorderly conduct
 - B. Manslaughter
 - C. Simple assault
 - D. Excessive speed
9. Which document would not be filed by a defendant?
 - A. Answer
 - B. Complaint
 - C. Order
 - D. Motion
10. A written or oral application made to a court or judge for a ruling or an order is called a _____.
 - A. Reply
 - B. Motion
 - C. Counterclaim
 - D. All are correct
11. The _____ doctrine provided guidelines for the separation of races in public services such as water fountains and bathrooms.
 - A. Equal but adequate
 - B. Separate and apart
 - C. Separate but equal
 - D. Separation of powers

12. Scenario: To save costs, the maker of a multivitamin leaves the iron out of its product but continues to list it as an ingredient on the label. After several weeks of taking the vitamin, Jake becomes severely anemic. He has the vitamins tested at a lab and then hires a lawyer to file suit against the vitamin manufacturer. Jake's lawyer will probably recommend a suit based on _____.
- A. wrongful death
 - B. necessity
 - C. product liability
 - D. contributory negligence
13. In an express contract, the terms are _____.
- A. oral only
 - B. oral or written
 - C. written only
 - D. implied
14. Client lists and secret recipes are examples of _____.
- A. trade secrets
 - B. generic names
 - C. service marks
 - D. copyrights
15. _____ are not covered by copyright protection.
- A. Written works
 - B. Music and film
 - C. Photographs and paintings
 - D. Ideas and Concepts
16. A legal assistant is responsible for all of the following except _____.
- A. Contacting clients to schedule meetings with the attorney
 - B. Determining whether or not an attorney should take a case
 - C. Billing clients
 - D. Drafting court documents
17. _____ is the initial appearance before a judge.
- A. Show cause hearing
 - B. Bond hearing
 - C. Jury Trial
 - D. Arraignment

18. In the area of law covering real estate, a(n) _____ is the document that shows property divided into lots and blocks.
- A. plat map
 - B. gradient map
 - C. elevation map
 - D. topographic map
19. Real property may include a number of things, but it always includes _____.
- A. land
 - B. vehicles
 - C. store fronts
 - D. farm ground
20. Double jeopardy means _____.
- A. committing the same crime twice
 - B. being tried for the same crime twice
 - C. being convicted of two separate crimes
 - D. committing a crime against two people at the same time
21. The _____ has the final authority to interpret the meaning of the Constitution.
- A. District Court
 - B. State Court
 - C. National Court
 - D. Supreme Court
22. A document that has been illegally altered is a _____.
- A. duplicate
 - B. duplex
 - C. forgery
 - D. mimeograph
23. The group of people who set the overarching policies for a corporation is known as the _____.
- A. corporate officers
 - B. board of directors
 - C. elected employees
 - D. incorporators

24. An organization's _____ are the basic rules that govern the internal operations of a corporation.
- A. Constitution
 - B. Bylaws
 - C. Rules of order
 - D. Board of directors
25. In a will, the term *issue of the marriage* refers to _____.
- A. debts
 - B. assets
 - C. taxes
 - D. children
26. In family law, when a person who files for divorce does not have to prove the spouse is at fault, this is called a _____ divorce.
- A. no fault
 - B. no cause
 - C. no merit
 - D. non grata
27. The person filing the petition in a dissolution of marriage proceeding is called the _____.
- A. despondent
 - B. petitioner
 - C. proclaimer
 - D. divorcee
28. When parties are involved in a lawsuit, they should only communicate through the _____.
- A. attorneys
 - B. legal secretary
 - C. court reporter
 - D. judge
29. When expressing numbers in legal documents, it is recommended that numbers one through _____ be spelled out in full instead of being written or keyed as digits.
- A. five
 - B. ten
 - C. twenty
 - D. one hundred

30. There are _____ justices serving on the U.S. Supreme Court.

- A. 5
- B. 7
- C. 9
- D. 11

PRODUCTION

Directions: *Your role in the production part of this test is to key a pleading with a judgement using the information below.*

Job 1: FINAL JUDGEMENT

Plaintiff: Shaun Anthony

Defendant: Silver's Gym, Inc.

Case No.: AH-2173

Venue: 5th Judicial Circuit, Hancock County, Vermont

Attorney for Plaintiffs: Brock Califf

Attorney for Defendant: Marta Martinez

Judge: Hugh Hansman

Amount of judgement: \$16,750

Date of trial ending: January 10, 2021

Copies furnished to: Brock Califf, Esq., Marta Martinez, Esq.

Be sure to follow the contest and format guidelines in the WSAP, the BPA Style & Reference Manual, and the General Instructions provided with this event.

This cause having come for trial before the court and a jury, the Honorable [enter name of judge] presiding, on [enter date of trial ending], and the issues have been duly tried, and the jury has rendered its verdict, it is

Ordered and adjudged that plaintiff [enter plaintiff name] recover from the defendant [enter defendant name] the sum of [enter amount of judgement] and his taxable costs. Let judgment be entered accordingly.

Done and ordered in Chambers at Weston, Hancock County, Vermont, this _____ day of _____, 2021.

[enter name of judge]
COUNTY JUDGE